

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JERRIL SHEPHERD,

Plaintiff,

Plaintiff designates
Bronx County
the place of trial

- against -

The basis of venue is
Location of incident

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER EUGENE URMAN (Badge No.:
19573),

Defendant.

SUMMONS

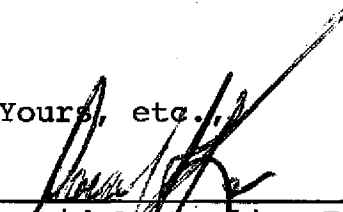
Plaintiff resides at:
58 Serpi Road
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Highland Mills, NY 10930

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
October 12, 2022

Yours, etc.,


David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573)
c/o 47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

BELOVIN FRANZBLAU & ASSOCIATES, PC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JERRIL SHEPHERD,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No:

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER EUGENE URMAN (Badge No.:
19573),

Defendants,
-----X

Plaintiff, by and through his attorneys, BELOVIN FRANZBLAU &
ASSOCIATES, PC, as and for a verified complaint, respectfully
allege as follows:

1. At all the times hereinafter mentioned, plaintiff was,
and still is, a resident of the State of New York, County of
Orange.

2. At all the times herein, the defendant, THE CITY OF NEW
YORK, was, and still is, a duly licensed Municipal Corporation
authorized to transact business in City of New York, County of
Bronx, State of New York.

3. Upon information and belief, the defendant, THE CITY
OF NEW YORK, employed NEW YORK CITY POLICE OFFICER EUGENE URMAN
(Badge No.: 19573), who was herein duly employed and acting as a
Police Officer (or other ranking officer) with the police
department of THE CITY OF NEW YORK.

4. Upon information and belief, all times herein, the defendant, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), was and still is an employee of THE CITY OF NEW YORK as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with THE CITY OF NEW YORK.

5. Upon information and belief, all times herein, the defendant, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), was and still is an employee of THE CITY OF NEW YORK as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of his employment with THE NEW YORK CITY POLICE DEPARTMENT.

6. THE CITY OF NEW YORK condoned all of the actions of NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), as set forth herein and hereinafter.

7. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendant, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), pursuant to the doctrine of respondeat superior.

8. The defendant, THE CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendant, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573) and THE NEW YORK CITY POLICE DEPARTMENT, pursuant to the doctrine of respondeat superior.

9. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573)**, as herein and hereinafter set forth.

10. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573)** and **THE NEW YORK CITY POLICE DEPARTMENT**, as herein and hereinafter set forth.

11. Upon information and belief, each and all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573)** alleged herein was done, both as an individual and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority and/or color of his authority of his position as a Police Officer (or other ranking officer) for the defendant, **THE CITY OF NEW YORK**.

12. Upon information and belief, on or about February 3, 2022 at approximately 10:00 a.m., plaintiff was a lawful owner/operator in a vehicle which was double parked in front of 3850 Boston Road, Bronx, New York.

13. Upon information and belief, on or about February 3, 2022 at approximately 10:00 a.m., plaintiff was a lawful owner/operator in a vehicle which was double parked behind other

vehicles also double parked in front of 3850 Boston Road, Bronx, New York.

14. Upon information and belief, while plaintiff was at the time, date and location as set forth herein, he was unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, ticketed and wrongfully searched, without sufficient justification or just cause.

15. Upon information and belief, while plaintiff was at the time, date and location as set forth herein, he was unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, ticketed and wrongfully searched, without sufficient justification or just cause, and plaintiff was unlawfully handcuffed, detained, arrested and imprisoned.

16. Upon information and belief, the defendants, **CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.: 19573), unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, arrested and wrongfully searched the plaintiff and the vehicle in which he was an owner/operator, and plaintiff, **JERRIL SHEPHERD**, was also searched without sufficient justification or just cause, and plaintiff was unlawfully stopped, detained, arrested and

imprisoned, and plaintiff was aware of such actions and did not consent to same.

17. Upon information and belief, the defendants, **CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.: 19573), unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, arrested, imprisoned, and searched the plaintiff, without sufficient justification or just cause, and the accusations by defendants that the plaintiff had committed a crime were unsupported by facts, were false and improper and plaintiff was wrongfully and unlawfully detained, held, arrested, searched, ticketed and imprisoned at the aforesaid location.

18. Upon information and belief, during the time the plaintiff was unlawfully held at the scene of this incident, the police vehicle, at the police precinct and/or at the courthouse, the plaintiff was forced to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom, and was kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish thereafter.

19. The Bronx County District Attorney's Office declined to prosecute all charges asserted by the defendants or any related charges by letter dated February 23, 2022 and no accusatory instrument was drafted or filed.

20. Prior to the commencement of this action, on or about the 3rd day of February, 2022, a Notice of Claim was duly served herein on the defendant, **THE CITY OF NEW YORK**, resulting in plaintiff undergoing a 50-H hearing on or about the 3rd day of June, 2022 pursuant to the General Municipal Law. At no time prior to this action being brought, did the defendant or any of the defendants' representatives, settle or seek to settle this claim. This action is timely and properly brought.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER EUGENE URMAN

21. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "20", above as if fully set forth herein.

22. On February 3, 2022 at approximately 10:00 a.m., plaintiff was a lawful owner/operator in a vehicle which was double parked behind other vehicles also double parked in front of 3850 Boston Road, Bronx, New York.

23. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested.

24. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed and wrongfully searched,

without sufficient justification or just cause, and plaintiff was unlawfully handcuffed, detained, arrested and imprisoned.

25. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed, searched, handcuffed and imprisoned, all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants.

26. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed, searched, handcuffed, and imprisoned, all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants herein and the plaintiff had not shown any indicia of criminality.

27. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed, searched, handcuffed, and imprisoned, all without probable cause or justification and all precipitated by the unlawful and improper actions of the defendants

herein and plaintiff was aware of all such actions and did not consent to any such actions.

28. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge #19573)** and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
AGAINST THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER
EUGENE URMAN

29. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "28", above as if fully set forth herein.

30. On February 3, 2022 at approximately 10:00 a.m., plaintiff was a lawful owner/operator in a vehicle which was double parked behind other vehicles also double parked in front of 3850 Boston Road, Bronx, New York.

31. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested.

32. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed and wrongfully searched, without sufficient justification or just cause, and plaintiff was unlawfully handcuffed, detained, arrested and imprisoned.

33. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed, searched, handcuffed and imprisoned, all without probable cause or justification and all precipitated by the unlawful and improper actions of the defendants.

34. Upon information and belief, on February 3, 2022, plaintiff was unlawfully, improperly and without probable or just cause, falsely arrested, wrongly targeted, profiled, singled out, violated, held, detained, ticketed, searched, handcuffed and imprisoned, without probable cause or justification and was precipitated by the unlawful and improper actions of the defendants herein and the plaintiff had not shown any indicia of criminality.

35. At all relevant times herein, the plaintiff was aware of the above stated actions of the defendants, aware of his confinement and imprisonment and did not consent to his confinement or imprisonment.

36. Upon information and belief, the plaintiff was improperly held/confined/imprisoned on February 3, 2022 from approximately 9:30 a.m. through 5:30 p.m. and thereafter all charges were non-processed by the Bronx County District Attorney's Office.

37. Upon information and belief, said stop, arrest, search, battery, confinement and imprisonment were without probable cause, were improper and without justification and the plaintiff, **JERRIL SHEPHERD's** movements were improperly restricted. This arrest, confinement, imprisonment, search and restriction of the plaintiff's movement was against his will and plaintiff was aware and did not consent to said stop, arrest, confinement, search, restriction and/or imprisonment.

38. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.:

19573), and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST NEW YORK CITY
POLICE OFFICER EUGENE URMAN

39. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "38", above as if fully set forth hereinafter.

40. Upon information and belief, during all the times herein, the individual defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.: 19573), acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

41. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.: 19573), engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States.

42. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN** (Badge No.: 19573), engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and

immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States in falsely stopping, searching, detaining, holding, arresting and imprisoning the plaintiff, and depriving the plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit, freedom from: illegal seizure, illegal search, violative search, illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. Upon information and belief, the defendant acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

43. Upon information and belief, the actions and conduct described herein by NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department and NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), and constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), and said misconduct and official unconstitutional policy caused plaintiff to be subjected to the aforesaid conduct and deprived of his constitutional rights.

44. Upon information and belief, at all times herein, **THE CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed against **THE CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as the above actions by the New York City Police Department Police Officers.

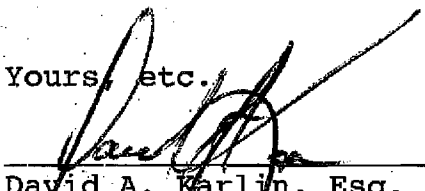
45. Upon information and belief, as a direct and proximate result of the conduct by the defendant, **NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573)**, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

46. Plaintiff hereby demands compensation and punitive damages against defendant, **NEW YORK CITY POLICE OFFICER UGENE URMAN (Badge No.: 19573)**, together with reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action for FALSE ARREST, and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action for FALSE IMPRISONMENT, and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action against defendant, NEW YORK CITY POLICE OFFICER EUGENE URMAN (Badge No.: 19573), for CIVIL RIGHTS VIOLATIONS, plus attorney's fees and punitive damages, together with costs, interest and disbursements of this action, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York
October 12, 2022

Yours, etc.

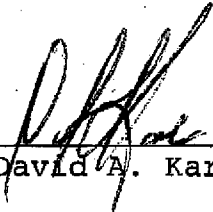

David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOC., LLP
Attorneys for Plaintiff
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

State of New York)
 : ss.:
County of Bronx)

The undersigned, an attorney admitted to practice in the Courts of New York State, shows that the deponent is the attorney of record for the Plaintiff(s) in the within action; deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes it to be true. This Verification is made by deponent and not by Plaintiff(s) because Plaintiff(s) are without the county wherein deponent maintains his offices. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: independent investigation, records, papers and documents in the file, conversations, communications and correspondence with the Plaintiff(s).

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
October 12, 2022



David A. Karlin